CONSTITUTIONAL INTERPRETATION DOCTRINES

METHOD BEFORE DOCTRINE → SEVERABILITY, ECLIPSE AND WAIVER → PITH, ANCILLARY POWER AND → TERRITORIAL NEXUS → ARTICLE 254 REPUGNANCY AND → HARMONY, READING AND INVALIDITY

Read the thick cyan rail from Stage 00 to the final core synthesis. Each card uses a concept-appropriate structure; the grey E card is optional enrichment only and never repairs missing core content.

● PRIMARY CORE FLOW · ● SUBORDINATE EXTRA · ◆ APPROVAL / REVIEW

CORE BEFORE EXTRA • prior artefacts unchanged • exact same master drives poster and tiles

Approval: FALSE • Pending user review • source generation g4 and all prior artifacts unchanged

00

STAGE 00 METHOD BEFORE DOCTRINE

METHOD BEFORE DOCTRINE · BINDING PRECEDENT. · FACTS MUST SATISFY EVERY OPERATIVE ELEMENT. · FREE-STANDING ARTICLE OR SLOGAN. · MUST REMEMBER · BEGIN WITH CONSTITUTIONAL TEXT AND THE LEGAL PROBLEM BEFORE

CONSTITUTIONAL BASIS / ARTICLE

- TEXT → STRUCTURE → HISTORY → PURPOSE → BINDING PRECEDENT.
- TRIGGER → TEST → CASE/YEAR → EFFECT → LIMIT → REMEDY.

POWER / PROCEDURE

- APPLICATION → facts must satisfy every operative element.
- DOCTRINE != free-standing Article or slogan.

CHECK / LIMIT

- MUST REMEMBER: Begin with constitutional text and the legal problem before selecting a doctrine
- a case label is not a substitute for an operative test.

FEDERAL / RIGHTS IMPACT

- TEXT → STRUCTURE → HISTORY → PURPOSE → BINDING PRECEDENT.
- TRIGGER → TEST → CASE/YEAR → EFFECT → LIMIT → REMEDY.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: MUST REMEMBER: Begin with constitutional text and the legal problem before selecting a doctrine; a case label is not a substitute for an operative test.

01

STAGE 01 SEVERABILITY, ECLIPSE AND WAIVER

SEVERABILITY, ECLIPSE AND WAIVER · R.M.D. CHAMARBAUGWALA V. UNION OF INDIA (1957) · SEPARABLE WORKABLE REMAINDER. · BHIKAJI NARAIN DHAKRAS (1955) · PRE-CONSTITUTION LAW DORMANT TO CONFLICT EXTENT. · BASHESHAR NATH (1958) · CONSENT CANNOT VALIDATE UNCONSTITUTIONAL STATE ACTION. · OBJECT CHECK

R.M.D. Chamarbaugwala v. Union of India (1957) → separable workable remainder. → Bhikaji Narain Dhakras (1955) → pre-Constitution law dormant to conflict extent. → Basheshar Nath (1958) → consent cannot validate unconstitutional State action. → OBJECT CHECK → part of law / enforceability / individual consent.

CONSTITUTIONAL BASIS / ARTICLE

- R.M.D. Chamarbaugwala v. Union of India (1957) → separable workable remainder.
- Bhikaji Narain Dhakras (1955) → pre-Constitution law dormant to conflict extent.

POWER / PROCEDURE

- Basheshar Nath (1958) → consent cannot validate unconstitutional State action.
- OBJECT CHECK → part of law / enforceability / individual consent.

CHECK / LIMIT

- R.M.D. Chamarbaugwala v. Union of India (1957) → separable workable remainder.
- Bhikaji Narain Dhakras (1955) → pre-Constitution law dormant to conflict extent.

FEDERAL / RIGHTS IMPACT

- Basheshar Nath (1958) → consent cannot validate unconstitutional State action.
- OBJECT CHECK → part of law / enforceability / individual consent.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: OBJECT CHECK → part of law / enforceability / individual consent.

02

STAGE 02 PITH, ANCILLARY POWER AND COLOURABILITY

PITH, ANCILLARY POWER AND COLOURABILITY · PRAFULLA KUMAR MUKHERJEE (1947) · TRUE NATURE AND CHARACTER. · STATE OF BOMBAY V. F.N. BALSARA (1951) · INCIDENTAL OVERLAP · EFFECTIVE ENTRY. · K.C. GAJAPATI NARAYAN DEO (1953) · DISGUISED LACK OF COMPETENCE.

Prafulla Kumar Mukherjee (1947) → true nature and character.

State of Bombay v. F.N. Balsara (1951) → incidental overlap / effective entry. → K.C. Gajapati Narayan Deo (1953) → disguised lack of competence. → MOTIVE alone is insufficient.

CONSTITUTIONAL BASIS / ARTICLE

- Prafulla Kumar Mukherjee (1947) → true nature and character.
- State of Bombay v. F.N. Balsara (1951) → incidental overlap / effective entry.

POWER / PROCEDURE

- K.C. Gajapati Narayan Deo (1953) → disguised lack of competence.
- MOTIVE alone is insufficient.

CHECK / LIMIT

- Prafulla Kumar Mukherjee (1947) → true nature and character.
- State of Bombay v. F.N. Balsara (1951) → incidental overlap / effective entry.

FEDERAL / RIGHTS IMPACT

- K.C. Gajapati Narayan Deo (1953) → disguised lack of competence.
- MOTIVE alone is insufficient.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: K.C. Gajapati Narayan Deo (1953) → disguised lack of competence.

03

STAGE 03 TERRITORIAL NEXUS

TERRITORIAL NEXUS · ART 245 · TERRITORIAL COMPETENCE · STATE OF BOMBAY V. R.M.D. CHAMARBAUGWALA (1957) · REAL AND SUFFICIENT NEXUS. · CONNECTION BETWEEN STATE, SUBJECT AND IMPOSED LIABILITY/OPERATION. · REMOTE OR ILLUSORY NEXUS FAILS.

CONSTITUTIONAL BASIS / ARTICLE

- ART 245 → territorial competence.
- State of Bombay v. R.M.D. Chamarbaugwala (1957) → real and sufficient nexus.

POWER / PROCEDURE

- TEST: connection between State, subject and imposed liability/operation.
- REMOTE OR ILLUSORY nexus fails.

CHECK / LIMIT

- ART 245 → territorial competence.
- State of Bombay v. R.M.D. Chamarbaugwala (1957) → real and sufficient nexus.

FEDERAL / RIGHTS IMPACT

- TEST: connection between State, subject and imposed liability/operation.
- REMOTE OR ILLUSORY nexus fails.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: TEST: connection between State, subject and imposed liability/operation.

04

STAGE 04 ARTICLE 254 REPUGNANCY AND OCCUPIED FIELD

ARTICLE 254 REPUGNANCY AND OCCUPIED FIELD · DEEP CHAND V. STATE OF UTTAR PRADESH (1959) + · SAME CONCURRENT FIELD · ACTUAL INCONSISTENCY · EXHAUSTIVE SCHEME · UNION PRIORITY. · ART 254(1) EFFECT · STATE LAW VOID ONLY TO THE EXTENT OF REPUGNANCY.

CONSTITUTIONAL BASIS / ARTICLE

- Deep Chand v. State of Uttar Pradesh (1959) + M. Karunanidhi v. Union of India (1979).
- SAME CONCURRENT FIELD → actual inconsistency / exhaustive scheme → Union priority.

POWER / PROCEDURE

- ART 254(1) EFFECT → State law void only to the extent of repugnancy.
- ART 254(2) ASSENT → State prevalence; no cure for incompetence; Parliament may override.

CHECK / LIMIT

- Deep Chand v. State of Uttar Pradesh (1959) + M. Karunanidhi v. Union of India (1979).
- SAME CONCURRENT FIELD → actual inconsistency / exhaustive scheme → Union priority.

FEDERAL / RIGHTS IMPACT

- ART 254(1) EFFECT → State law void only to the extent of repugnancy.
- ART 254(2) ASSENT → State prevalence; no cure for incompetence; Parliament may override.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: ART 254(2) ASSENT → State prevalence; no cure for incompetence; Parliament may override.

05

STAGE 05 HARMONY, READING AND INVALIDITY

HARMONY, READING AND INVALIDITY · IN RE KERALA EDUCATION BILL (1958) · MEANINGFUL RECONCILIATION. · KEDAR NATH SINGH (1962) · READING DOWN WITHIN TEXT. · READING INTO · STRONG CONSTITUTIONAL BASIS; CANNOT CREATE A COMPLETE CODE. · ONLY AFTER SAVING CONSTRUCTION FAILS.

In re Kerala Education Bill (1958) → meaningful reconciliation. → Kedar Nath Singh (1962) → reading down within text. → READING INTO → strong constitutional basis; cannot create a complete code. → SEVER / STRIKE → only after saving construction fails. → CLOSE DISTINCTION: Keep competence, rights review, interpretive meaning, precedent, temporal

CONSTITUTIONAL BASIS / ARTICLE

- In re Kerala Education Bill (1958) → meaningful reconciliation.
- Kedar Nath Singh (1962) → reading down within text.

POWER / PROCEDURE

- READING INTO → strong constitutional basis; cannot create a complete code.
- SEVER / STRIKE → only after saving construction fails.

CHECK / LIMIT

- CLOSE DISTINCTION: Keep competence, rights review, interpretive meaning, precedent, temporal
- effect and remedy as distinct stages with bench-strength discipline.

FEDERAL / RIGHTS IMPACT

- In re Kerala Education Bill (1958) → meaningful reconciliation.
- Kedar Nath Singh (1962) → reading down within text.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: CLOSE DISTINCTION: Keep competence, rights review, interpretive meaning, precedent, temporal effect and remedy as distinct stages with bench-strength discipline.

06

STAGE 06 TIME, AMENDMENT AND BASIC STRUCTURE

TIME, AMENDMENT AND BASIC STRUCTURE · I.C. GOLAKNATH (1967) · REASONED PROSPECTIVE OVERRULING. · KESAVANANDA BHARATI (1973) · ARTICLE 368 CANNOT DAMAGE BASIC STRUCTURE. · MINERVA MILLS (1980) · LIMITED AMENDING POWER + PART III/IV HARMONY.

I.C. Golaknath (1967) → reasoned prospective overruling.

Kesavananda Bharati (1973) → Article 368 cannot damage basic structure. → Minerva Mills (1980) → limited amending power + Part III/IV harmony. → INTERPRETATION != AMENDMENT.

CONSTITUTIONAL BASIS / ARTICLE

- I.C. Golaknath (1967) → reasoned prospective overruling.
- Kesavananda Bharati (1973) → Article 368 cannot damage basic structure.

POWER / PROCEDURE

- Minerva Mills (1980) → limited amending power + Part III/IV harmony.
- INTERPRETATION != AMENDMENT.

CHECK / LIMIT

- I.C. Golaknath (1967) → reasoned prospective overruling.
- Kesavananda Bharati (1973) → Article 368 cannot damage basic structure.

FEDERAL / RIGHTS IMPACT

- Minerva Mills (1980) → limited amending power + Part III/IV harmony.
- INTERPRETATION != AMENDMENT.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Minerva Mills (1980) → limited amending power + Part III/IV harmony.

07

STAGE 07 EQUALITY STANDARDS AND PROPORTIONALITY

EQUALITY STANDARDS AND PROPORTIONALITY · RAM KRISHNA DALMIA (1958) · REBUTTABLE VALIDITY PRESUMPTION. · E.P. ROYAPPA (1973) · MODERN DENTAL COLLEGE (2016) · STRUCTURED PROPORTIONALITY. · SHAYARA BANO V. UNION OF INDIA (2017) · MANIFEST ARBITRARINESS.

CONSTITUTIONAL BASIS / ARTICLE

- Ram Krishna Dalmia (1958) → rebuttable validity presumption.
- E.P. Royappa (1973) → arbitrariness/equality.

POWER / PROCEDURE

- Modern Dental College (2016) → structured proportionality.
- Shayara Bano v. Union of India (2017) → manifest arbitrariness.

CHECK / LIMIT

- K.S. Puttaswamy (2017) + Anuradha Bhasin (2020) → rights justification.
- Ram Krishna Dalmia (1958) → rebuttable validity presumption.

FEDERAL / RIGHTS IMPACT

- E.P. Royappa (1973) → arbitrariness/equality.
- Modern Dental College (2016) → structured proportionality.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: K.S. Puttaswamy (2017) + Anuradha Bhasin (2020) → rights justification.

08

STAGE 08 MORALITY, TRANSFORMATION AND RELIGION

MORALITY, TRANSFORMATION AND RELIGION · NAVTEJ SINGH JOHAR V. UNION OF INDIA (2018) · CONSTITUTIONAL MORALITY + TRANSFORMATION. · SHIRUR MUTT (1954) · RELIGIOUS/SECULAR DISTINCTION. · INDIAN YOUNG LAWYERS ASSOCIATION (2018) · EQUALITY, DIGNITY AND RELIGION CONFLICT. · PENDING REVIEW/REFERENCE

CONSTITUTIONAL BASIS / ARTICLE

- Navtej Singh Johar v. Union of India (2018) → constitutional morality + transformation.
- Shirur Mutt (1954) → religious/secular distinction.

POWER / PROCEDURE

- Indian Young Lawyers Association (2018) → equality, dignity and religion conflict.
- PENDING review/reference != changed holding.

CHECK / LIMIT

- Navtej Singh Johar v. Union of India (2018) → constitutional morality + transformation.
- Shirur Mutt (1954) → religious/secular distinction.

FEDERAL / RIGHTS IMPACT

- Indian Young Lawyers Association (2018) → equality, dignity and religion conflict.
- PENDING review/reference != changed holding.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Indian Young Lawyers Association (2018) → equality, dignity and religion conflict.

09

STAGE 09 ADMINISTRATION AND TEXTUAL RESTRAINT

ADMINISTRATION AND TEXTUAL RESTRAINT · SHAMSHER SINGH (1974) · PLEASURE/RESPONSIBLE GOVERNMENT. · MOTILAL PADAMPAT SUGAR MILLS (1978) · PROMISSORY ESTOPPEL LIMITS. · NAVJYOTI COOPERATIVE GROUP HOUSING (1992) · LEGITIMATE EXPECTATION. · PADMA SUNDARA RAO (2002)

Shamsher Singh (1974) → pleasure/responsible government. → Motilal Padampat Sugar Mills (1978) → promissory estoppel limits. → Navjyoti Cooperative Group Housing (1992) → legitimate expectation. → Padma Sundara Rao (2002) → casus omissus restraint.

CONSTITUTIONAL BASIS / ARTICLE

- Shamsher Singh (1974) → pleasure/responsible government.
- Motilal Padampat Sugar Mills (1978) → promissory estoppel limits.

POWER / PROCEDURE

- Navjyoti Cooperative Group Housing (1992) → legitimate expectation.
- Padma Sundara Rao (2002) → casus omissus restraint.

CHECK / LIMIT

- Shamsher Singh (1974) → pleasure/responsible government.
- Motilal Padampat Sugar Mills (1978) → promissory estoppel limits.

FEDERAL / RIGHTS IMPACT

- Navjyoti Cooperative Group Housing (1992) → legitimate expectation.
- Padma Sundara Rao (2002) → casus omissus restraint.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Padma Sundara Rao (2002) → casus omissus restraint.

10

STAGE 10 PRECEDENT, BENCH STRENGTH AND ARTICLE 142

PRECEDENT, BENCH STRENGTH AND ARTICLE 142 · ARTICLE 141 · BINDING RATIO; DISTINGUISH OR REFER. · SUPREME COURT BAR ASSOCIATION (1998) · ARTICLE 142 CANNOT DISREGARD SUBSTANTIVE LAW. · SMALLER BENCH · NO SILENT OVERRULING. · PERSUASIVE, NOT AUTOMATICALLY BINDING.

ARTICLE 141 → binding ratio; distinguish or refer.

Supreme Court Bar Association (1998) → Article 142 cannot disregard substantive law. → SMALLER BENCH → no silent overruling. → OBITER → persuasive, not automatically binding.

CONSTITUTIONAL BASIS / ARTICLE

- ARTICLE 141 → binding ratio; distinguish or refer.
- Supreme Court Bar Association (1998) → Article 142 cannot disregard substantive law.

POWER / PROCEDURE

- SMALLER BENCH → no silent overruling.
- OBITER → persuasive, not automatically binding.

CHECK / LIMIT

- ARTICLE 141 → binding ratio; distinguish or refer.
- Supreme Court Bar Association (1998) → Article 142 cannot disregard substantive law.

FEDERAL / RIGHTS IMPACT

- SMALLER BENCH → no silent overruling.
- OBITER → persuasive, not automatically binding.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Supreme Court Bar Association (1998) → Article 142 cannot disregard substantive law.

11

STAGE 11 UPSC INTEGRATED DECISION TREE

UPSC INTEGRATED DECISION TREE · 1 COMPETENCE · ART 254. · 2 MEANING · 3 RIGHTS · 4 INVALIDITY · READ DOWN · 5 TIME + AUTHORITY

1 COMPETENCE → pith / colour / nexus / Art 254. → 2 MEANING → harmony / purpose / precedent. → 3 RIGHTS → equality / proportionality. → 4 INVALIDITY → read down / sever / strike. → 5 TIME + AUTHORITY → prospective effect / Article 141.

CONSTITUTIONAL BASIS / ARTICLE

- 1 COMPETENCE → pith / colour / nexus / Art 254.
- 2 MEANING → harmony / purpose / precedent.
- 3 RIGHTS → equality / proportionality.

POWER / PROCEDURE

- 4 INVALIDITY → read down / sever / strike.
- 5 TIME + AUTHORITY → prospective effect / Article 141.
- VERDICT: exact tests constrain judicial choice.

CHECK / LIMIT

- CURRENT CONTROL: 5 SEPTEMBER 2026
- No located 2025-26 official judgment displaced this doctrine map.
- The nine-judge essential-religious-practices reference remains pending

FEDERAL / RIGHTS IMPACT

- a pending reference does not overrule the controlling larger-bench law.
- LEGAL/SOURCE LIMIT: No located 2025-26 authority displaced the established doctrine map
- the nine-judge essential-religious-practices reference remains pending.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: LEGAL/SOURCE LIMIT: No located 2025-26 authority displaced the established doctrine map; the nine-judge essential-religious-practices reference remains pending.

E

EXTRA SUBORDINATE ENRICHMENT — ONLY AFTER THE COMPLETE CORE

OPTIONAL ADVANCED ENRICHMENT · DOCTRINE STACKING · STANDARDS OF REVIEW · DEMOCRATIC LEGITIMACY AND JUDICIAL RESTRAINT · DOCTRINAL UNCERTAINTY · ANSWER SYNTHESIS · IDENTIFIES ENACTED TEXT AND BINDING PRECEDENT · EXPLAINS THE DOCTRINAL TRIGGER

OPTIONAL DOCTRINE / CASE

- Doctrine stacking
- Standards of review
- Democratic legitimacy and judicial restraint
- Doctrinal uncertainty

ADVANCED LIMIT

- Answer synthesis
- identifies enacted text and binding precedent;
- explains the doctrinal trigger;
- gives reasons for the standard of review;

COMPARATIVE NUANCE

- distinguishes interpretation from policy choice;
- chooses a remedy no broader than necessary; and
- leaves genuine legislative gaps to the competent institution unless an enforceable
- The Core doctrine atlas is independently sufficient.

OPTIONAL STATUS — This optional depth is unnecessary for a competent core answer; use it only for added nuance after the complete core has been written.

END OF MASTER CANVAS • poster embeds this exact master • tiled pages are overlapping crops of the same pixels